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Case Number: 24NNCV05136 Hearing Date: August 11, 2026 Dept: T

John Doe vs Delphi Schools,
Inc., et al.

Motion

for Leave to Amend the Complaint

Moving Party: Plaintiff

John Doe

Responding Party: Defendant

Delphi Schools, Inc.

Tentative Ruling: Grant

BACKGROUND

On October 17, 2024, Plaintiff John Doe ("Plaintiff") filed a complaint against Defendants Delphi Schools, Inc. ("Defendant"), Randolph Clifford Jackson ("Jackson"), and Roes 1 through 25, alleging the following causes of action: (1) sexual assault of a minor; (2) negligent hiring, supervision and/or retention of Jackson; and (3) negligent supervision of Plaintiff.

Plaintiff now moves for leave to
file a first amended complaint ("FAC").

Defendant

opposes, and Plaintiff replies.

MOVING

PARTY POSITION

Plaintiff seeks leave to file an FAC to add Applied Educational Concepts, Inc. dba Delphi Academy of Los Angeles as a Defendant, to set forth additional factual allegations regarding the alleged assaults of Plaintiff and John Doe 2 by Jackson, to set forth a cause of action for ratification, and to add new allegations and prayers for punitive and treble damages. Plaintiff argues there is no prejudice to the defendants, as ample time exists to conduct any additional discovery before the current trial date of March 29, 2027.

OPPOSITION

Defendant contends that Plaintiff's unreasonably delay in seeking leave to amend would cause it substantial and irreparable prejudice due to the additions of a new defendant, ratification as a new theory of liability, new treble damages and expanded punitive damages allegations, and extensive new factual allegations.

Defendant also contends that motion is procedurally defective, as the declaration of Plaintiff's counsel fails to set forth all the information required by California Rule of Court, rule 3.1324(b). Defendant further contends that each of the proposed claims for ratification, punitive damages, and treble damages are legally insufficient.

REPLY

Plaintiff responds that the motion to amend was timely made and that Defendant has not shown any prejudice from any alleged delay in Plaintiff seeking leave to amend. Plaintiff further responds that his counsel's declaration properly support the motion and that each of the new claims in the proposed FAC is properly stated.

ANALYSIS

I.

Legal

Standard

A. Amendment to Pleadings: General
Provisions

Under

Code of Civil Procedure section 576, “[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.”

Code

of Civil Procedure section 473(a)(1) provides, in relevant part: “[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer.” The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.”

“This discretion should be exercised

liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit.” (Kittredge

Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047.) The Court of Appeal in Morgan v. Superior Court (1959) 172 Cal.App.2d 527 held, “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530, citations omitted.)

Moreover, “it is an abuse of discretion for the court to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (Kittredge, supra, at p. 1048 [the opposing party did not establish harm by the delay in moving to amend the complaint].)

B. California Rules of Court, rule 3.1324:
Procedural Requirements

Pursuant to California Rules of

Court, rule 3.1324(a), a motion to amend a pleading before trial must:

“(1)

Include a copy of the proposed amendment or amended pleadings, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2)

State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

(3)

State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.”

In addition, under Rule 3.1324(b),

a motion to amend a pleading before trial must be accompanied by a separate declaration that specifies the following:

“(1)

The effect of the amendment;

(2)

Why the amendment is necessary and proper;

(3)

When the facts giving rise to the amended allegations were discovered; and

(4)

The reasons why the request for amendment was not made earlier.”

II.

Discussion

Initially, the Court notes that Plaintiff

appears to have substantially complied with the procedural requirements and attached a copy of the proposed FAC. (Boskovich

Decl. ¶ 2, Exh. 1 (“Proposed FAC”).) The

proposed pleading now adds Applied Educational Concepts, Inc., dba Delphi

Academy as a defendant and sets forth a new cause of action for ratification, along with expanded factual and new damages allegations. (Ibid.) Although Defendant contends that the Boskovich declaration does not sufficiently set forth the information required by Rule 3.1324(b), in reviewing the Boskovich declaration, the Court finds that Plaintiff has substantially complied with these requirements.

Furthermore, to the extent that Defendant contends that it will be prejudiced if leave to amend is granted, as the Court finds that there was a reasonable excuse for the delay based on the Boskovich declaration, and as there exists ample time for Defendant to conduct any necessary discovery concerning these expanded factual allegations and new theories of liability and recovery, the Court finds that there is no showing of prejudice that would justify denial of the motion.

Therefore, given the liberal policy favoring amendment, the motion for leave to amend the complaint is granted. (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428 ["The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified."]; Morgan v. Superior Court of Cal. In and For Los Angeles County (1959) 172 Cal.App.2d 527, 530 ["If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion."].)

RULING

Plaintiff's Motion for Leave to File a First Amended Complaint is GRANTED. Exhibit "1" to the Boskovich declaration is deemed filed as the operative complaint as of today's hearing date. Plaintiff to file a standalone copy of the amended complaint forthwith for the purpose of the docket.